

SCOPE OF WORK

This Section covers the general requirements of the UPS Solution on turn-key basis and deliverables/ responsibilities of the successful bidder.

1. Turn-Key Solution

- a. The scope of the successful bidder includes Designing, Supply, Installation, Testing and Commissioning of Modular UPS, Battery, Isolation Transformer, Input/Output Panels, Precision Air Conditioning, Earthing, Distribution Cabling, BMS Monitoring Stations.
- b. The entire work shall be done in a professional grade manner with appropriate electrical drawing documentation, necessary safeguards, proper labelling and sealing wherever required.
- c. All allied accessories, associated material, spares, tools, machinery, equipment, conduits, Cable Trays, Racks, race-ways, cable managers etc. shall be the responsibility of the successful bidder without any additional cost.
- d. The responsibility towards required work, man power, skill-set etc. rests with the successful bidder.
- e. Unloading, Lifting, Shifting, Positioning, and Fixing of all the material/equipment shall be the responsibility of the successful bidder.
- f. Any minor civil and entire electrical work required to be done for completion of the project shall be the responsibility of the successful bidder.
- g. Installation, commissioning, testing and configuration shall be carried out by OEM / bidder with support of OEM.
- h. Rodent Protection shall be ensured for each equipment and cabling done.
- i. If during the project execution, any addition or any modification from the proposed materials/ equipment/hardware, software/ appliances/licenses or specifications/ make/model of the same/higher specification is required, the same shall be done with prior intimation and approvals from CBI.
- j. The successful bidder shall inform CBI before delivery of goods for conducting pre-dispatch inspection of UPS and Batteries. Necessary testing arrangement has to be done by the bidder for testing of all performance parameters as per the relevant technical specifications.
- k. The successful bidder shall be responsible for performing verification tests to ensure all proposed software and hardware are functioning as per design.
- l. After successful Acceptance of the Project Implementation, it shall be handed over to CBI.

2. Electrical

- a. It is the responsibility of the bidder to assess the required dimensions during the site survey and prepare the layout for placing the various equipment at the location earmarked by CBI for the purpose.
- b. Electrical Wiring required from the Mains Distribution Board, Interconnection between various units and its distribution shall be the responsibility of the successful bidder.
- c. Proper Earthing arrangement for all the equipment including the earthing pit, copper plates and interconnectivity shall be responsibility of the successful bidder.

3. UPS Solution with Isolated Transformer

- a. Isolated Transformer of appropriate capacity in accordance to UPS requirements shall be commissioned by the successful bidder.
- b. The successful bidder shall commission the entire UPS and Battery infrastructure as per the proposed design.
- c. The successful bidder shall ensure the UPS and Battery modules are commissioned in HA mode.
- d. Passive network cabling required for BMS Stations shall be the responsibility of the successful bidder.
- e. The successful bidder shall implement redundancy in the proposed design.
- f. The successful bidder shall ensure minimum disruption during the implementation of the proposed solution.
- g. Final commissioning of the UPS shall be carried as far as possible after office hours/holidays.

4. Precision Air Conditioning (PAC)

- a. PAC of 5TR capacity in 1 working and 1 stand-by mode for the entire setup is required to be commissioned by the successful bidder.
- b. All accessories including arrangements for heating & humidification shall be supplied by the successful bidder.
- c. Supply of the associated materials like copper pipes, electrical cabling, cpvc pipe, water inlet pipe, stand, trays, refrigerant, drain, humidifier, etc. required for installation of the PAC shall be the responsibility of the successful bidder.
- d. Commissioning of Indoor and Outdoor Units, and low side work, including gas pressure testing, vacuuming & commissioning, etc. shall be the responsibility of the successful bidder.

5. Warranty

- a. 5 years comprehensive warranty for all line items (except battery) and 10 years replacement warranty for Battery shall be provided by the successful bidder.
- b. Warranty period will commence after handover of the Project to CBI and shall remain in force for 5 years from the date of commencement of the Warranty.
- c. Any on-site support required during the warranty period shall be provided by the successful bidder without any extra cost to CBI.
- d. Latest version of the BMS or any software used in the solution including OS, MS-Office shall be maintained by the successful bidder during the currency of the contract. Upgrades/Updates of the firmware/software shall be done as and when released during the warranty period.

6. Acceptance Criteria

Upon successful commissioning, the bidder should provide at-least following documents:

- a. Design document containing Electrical drawings.
- b. Installation Report
- c. Test/Verification Reports
- d. Required Warranties
- e. TAC User Details
- f. Updated Escalation Matrix

7. Project Timeline

All the items covered in the BoQ must be supplied, installed and commissioned within 60 days from the date of award of Contract / placement of order.

S.No.	Milestone	Deliverables	Timeline
1	Site Preparation	It shall include all Electrical Works including necessary cablings for successful implementation of Project	45 days
2	Delivery of Goods	Delivery of all line items as per BoQ	60 days
3	Installation, Testing & Commissioning	Installation of all line items as per BoQ and making the solution functional	90 days

SPECIAL CONDITIONS OF CONTRACT

1. Prices

- a) The prices quoted shall remain firm and no price escalation will be permitted. Bidder must indicate applicable GST separately. The bidder should exercise utmost care to quote the correct percentage of applicable GST on each item.
- b) In case due to any error/ oversight, the GST rate quoted by the bidder is different than the actual GST rate as per the tariff, the bidder will not be permitted to rectify the error/oversight. The difference amount payable, if any, between the quoted GST rate and actual tariff rate shall be borne by the bidder.
- c) Notwithstanding the paras mentioned above, if the GST is not quoted separately and the bid is silent whether GST is included or excluded in price, then for the purpose of evaluation of bids, the prices shall be taken as quoted with GST. In this case, the order will be placed with the quoted price. The GST applicable, if any will be borne by the bidder/contractor
- d) Bidder must quote in INR only.
- e) The prices quoted must be inclusive of equipment cost, packing & forwarding, freight, insurance, loading, unloading charges /entry tax/road permit charges and allied charges till destination.
- f) Any upward revision / imposition of new taxes, levies etc., during the contract, period may be reimbursed on submission of documentary evidence by the bidder and acceptance of the same by CBI.
- g) Any downward revision in taxes or levies etc., during the contract, period may be recovered from the bidder form the current running bills. Changes in the taxes structure as mentioned above shall be updated in the POs suitably.

2. Completeness Responsibility

The bidders may please note that this is a contract on 'Turn-key' basis. Notwithstanding the scope of work, engineering, supply and services stated in bid document, any equipment or material, engineering or technical services which are not specifically mentioned under the scope of supply of the bidder and which are not expressly excluded there from but which – in view of the bidder - are necessary for the required performance of the entire solution in accordance with the specifications mentioned in the bid document are treated to be included in the bid and has to be implicitly performed by bidder. In no case, the bidder will be permitted to increase the prices quoted.

3. Force Majeure

CBI may consider relaxing the penalty and delivery requirements, as specified in this document, if and to the extent that, the delay in performance or other failure to perform its obligations under the contract is the result of an Force Majeure. Force Majeure is defined as an event of effect that cannot reasonably be anticipated such as acts of God (like earthquakes, floods, storms etc.), acts of states / state agencies, the direct and indirect consequences of wars (declared or undeclared), hostilities, national emergencies, civil commotion at successful bidder's premises or any other act beyond control of the bidder.

4. Arbitration

In case any dispute arises between the CBI and successful bidder with respect to this NIT, including its interpretation, implementation or alleged material breach of any of its provisions both the Parties hereto shall endeavor to settle such dispute amicably. If the Parties fail to bring about an amicable settlement within a period of 30 (thirty) days, dispute shall be referred to the sole arbitrator mutually appointed by both parties. If the sole arbitrator is not appointed mutually by both the parties then court of law within Delhi shall have exclusive jurisdiction for appointment of sole arbitrator through court. Arbitration proceedings shall be conducted in accordance with the provisions of the Arbitration and Conciliation Act, 1996 and Rules made there under, or any legislative amendment or modification made thereto. The venue of the arbitration shall be Delhi. The award given by the arbitrator shall be final and binding on both the Parties. The language of arbitration shall be English. The common cost of the arbitration proceedings shall initially be borne equally by the Parties and finally by the Party against whom the award is passed. Any other costs or expenses incurred by a Party in relation to the arbitration proceedings shall ultimately be borne by the Party as the arbitrator may decide. Courts in Delhi only shall have the exclusive jurisdiction to try, entertain and decide the matters which are not covered under the Arbitration and conciliation Act.

5. Indemnity

The successful bidder shall indemnify, protect and save CBI from/against all claims, losses, costs, damages, expenses, action suits and other proceeding, resulting from infringement of any law pertaining to intellectual property, patent, trademarks, copyrights etc. or such other statutory infringements in respect of all the equipment supplied by successful bidder, or caused due to any act of the bidder.

6. Assignment

Successful bidder/ Party shall not assign, delegate or otherwise deal with any of its rights or obligation to other parties under this Contract, without prior approval of CBI.

7. Severability

If any provision of this Contract is determined to be invalid or unenforceable, it will be deemed to be modified to the minimum extent necessary to be valid and enforceable. If it cannot be so modified, it will be deleted and the deletion will not affect the validity or enforceability of any other provision.

8. Termination

Validity of purchase order/rate contract will remain till fulfilment of all obligations (including warranty/support till completion of five years from acceptance of the entire integrated solution as a whole) by the successful bidder.

In case of the delays in providing the stipulated services, and /or defect/delay/under or non-Performance pertaining to the services / products supplied by the successful bidder, CBI will give written notice to the bidder directing to set the things right within 7 days of notice. If successful bidder fails to comply with the requirements, the successful bidder should accept that it shall be liable to pay damages claimed by CBI.

9. Limitation of Liability

The liability of the successful bidder / contractor arising out of breach of any terms/conditions of the tender / contract/work order and addendums/amendments thereto, misconduct, willful default will be limited to the total contract value. However, liability of the bidder in case of death/injury/damage caused to the personnel/property due to/arising out of/incidental to any act/omission/default/deficiency of bidder/contractor will be as per actuals.

10. Disclaimer

The purpose of this bid document is to provide the bidder(s) with information to assist the formulation of their proposals. This bid document does not claim to contain all the information each bidder may require. Each bidder should conduct his own analysis and should check the accuracy, reliability and completeness of the information in this bid document. CBI makes no representation or warranty and shall incur no liability under any law, statute, rules or regulations as to the accuracy, reliability or completeness of this bid document.

11. Jurisdiction

The disputes, legal matters, court matters, if any shall be subject to jurisdiction of Delhi only.

12. Integrity Pact

The Bidder shall submit duly signed Integrity Pact as provided in the Annexure-“E” of “Instructions to Bidders” document. The Integrity Pact shall be provided in the Technical Bid. Non submission of this document may make the bid liable for rejection.